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9. Records of Civil suit bearing number Special Civil Suit No. 222/94/A filed by Comunidade of Bambolim against Maximo Mergulhao through his heirs Mrs. Dionisio Dias e Mergulhao before the Civil Judge Senior Division Panaji.
10. Consent Decree dated 21/11/1998 passed in Special Civil Suit No. 222/94/A by the Civil Judge Senior Division Panaji.
11. Records of Regular Civil suit No. 7/2007/D filed by Mr. Pascoal Trindade before the Civil Judge Junior Division Panaji.
12. Judgement and Decree passed in Regular Civil suit No. 7/2007/D by the Civil Judge Senior Division Panaji.
13. Judgement and Order of Dy. Collector & SDO Panaji in case No-LRC/COR/8/2007.
14. Deed of Sale dated 23/4/2006 registered in the office of the Sub Registrar of Ilhas Goa under No. 1240 at pages 409 to 427, Book 1, Volume 1634 dated 3/5/2006 pertaining to survey No. 93/4 of Bambolim Village.
15. Nil Encumbrance Certificate No. 1357 dated 26/9/2011 issued by the office of the Sub Registrar & Notary Ex-officio, Taluka Tiswadi at Panaji.
16. Judgement & Order dated 1/8/2011 passed by Dy. Collector & SDO Panaji in Case No. 111/CNV/TIS/19/2009.

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17. Order in Writ Petition No. 102/2009 passed by Hon'ble High Court of Bombay at Goa dated 19/9/2011.
18. Judgement & Order dated 29/5/2012 passed by Hon'ble High Court of Bombay at Goa in writ petitions Nos. 506, 557 and 577 of 2009 and 567 of 2011.
19. Judgement & Order dated 24/8/2012 passed by Hon'ble Supreme Court of India in Special Leave Petition No. 19598 of 2012.
20. Order in writ No. RB/CNV/TIS/03/2008 dated 16/12/2011.
21. Technical clearance Order issued by the Town & Country Planning Department Panaji bearing Reference No TIS/ 6087/ BAM/ TC/12/1045 dated 27/8/2012.
22. Environmental Clearance issued by the Goa State Environmental Impact Assessment Authority vide Reference No.3-181-2010/STE-ENV/104 dated 27/3/2013.
23. Clearance License issued by the Village Panchayat of Circa bearing Reference No.VP/CBT/2012-13-2012/2041 dated 30/3/2013.
24. Application viz. Misc. Application No.6/2010/B for Setting aside the Order dated 21/11/1998 passed in C.S. No.272/94/A.
25. Application viz. Misc. Application No.6/2009 pending before the Additional District Judge, North Goa.

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26. Proceedings of Civil Suit viz. Special Civil suit No.32/2011/A pending adjudication before the Civil Judge Senior Division Panaji.
27. Appeal with Condonation of delay against Judgement & Order dated 1/8/2011 passed by Dy. Collector & SDO Panaji in case No.H.L./CNV/TIS/19/2009 viz. Miscellaneous/Ar/216/13/Cond/18/A pending adjudication before the Administrative Tribunal North Goa Panaji.
28. Proceedings from the Land Survey Department into the inquiry during the time of creation of survey holdings number 93/2, 93/3 and 93/4.

**CHAIN OF TITLE DEEDS AND OTHER DOCUMENTS WHICH
HAVE BEEN SCRUTINIZED BY ME:**

1) I am concerned herein only with the properties bearing survey numbers 93/2, 93/3 and 93/4 of Bambolim Village and more particularly the property bearing survey number 93/4 which were purchased by Pascual Trindade from Dionisia Dias e Mergulhao alias Mrs. Dionsia Dias in the year 2006 by registered Deeds of Sale. These properties thereby came in possession of Pascual Trindade from the year 2006 and prior thereto the same were owned, enjoyed and possessed by Dionisia Dias e Mergulhao alias Mrs. Dionsia Dias and her family. Considering the pending litigations, the purpose of this search is also to give my opinion whether the Pascual Trindade of Bambolim has right to the said properties or not?

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2) From the records perused by me it is seen that the properties purchased by Pascoal Trindade bearing survey Nos. 93/2, 93/3 and 93/4 amongst others are the properties originally belonging to Alexandre Rodrigues/Maria Conceicao Rodrigues. The records reveals that said Alexandre Rodrigues left behind on his death his sole and universal heir, Maria Conceicao Rodrigues. Said Maria Conceicao Rodrigues was married to Gregorio Germano Mergulhao.

a) Said Gregorio Germano Mergulhao and Maria Conceicao Rodrigues had 2 sons, named, Emmanuel Joveniano Paixao Mergulhao and Francisco Aleixo Dorex Mergulhao. Said Francisco Aleixo Dorex Mergulhao died bachelor.

b) Said Emmanuel Joveniano Paixao Mergulhao was married to Maria Gertrudes de Penegrina Viegas. They entered a deed by Mr. Maximo Mergulhao and his wife Mrs. Dionisia Dias e Mergulhao as their sole heirs to inherit the estate left by Alexandre Rodrigues and Maria Conceicao Rodrigues.

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c) Mr. Maximo Mergulhao expired on 26th March 1998. The other heirs of Maximo Mergulhao by Deed of Relinquishment dated 13th May 1998 relinquished their rights in respect of the properties of Mr. Maximo Mergulhao. In view of the said Deed of Relinquishment, Mrs. Dionsia Dias e Mergulhao alias Mrs. Dionsia Dias, became the sole owner of the said properties.

3) From the documents seen by me and from the pleadings in the various proceedings which have been read by me, it is seen that said properties described above originally belonging to Alexandre Rodrigues and later to Maria Conceicao Rodrigues and later to Maximo Mergulhao and later to Dionsia Dias e Mergulhao and amongst others are surveyed for the purpose of record of rights of Village Bantolim of Tiawadi Taluka under survey numbers 93/2, 93/3 and 93/4.

4) The survey records under the land revenue code in Village Bantolim were conducted sometimes in the year 1975-76 and promulgated in the year 1979. During this survey, the said properties belonging to and inherited by Dionsia Dias e Mergulhao were identified and recorded in the name of her husband and later in her name.

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5) After the purchase of the properties, the survey records of the said properties bearing survey numbers 93/2, 93/3 and 93/4 came to be transferred in the name of Pascoal Trindade. Comunidade did not lodge any objection on the said survey numbers when the survey was kept open for lodging objection or at a later stage when the time was extended or even during promulgation and during mutation of the name of Pascoal Trindade. The reason is obvious. The Comunidade has/had no concern with the same.

6) It is seen from the records that, the Inspector of cadastral survey/survey and settlement officer/inquiry officer land records Panaji-Goa, made an inquiry into the title of land as per Goa Daman & Diu Land Revenue (inquiry into title of land) Rules, 1969 and by order dated 15th January, 1982 maintained the survey entries of survey numbers 93/2, 93/3 and 93/4. The administrator of Goa Daman & Diu, Comunidade of Bambolim were parties to the said proceedings. The Comunidade did not raise any objection pertaining to the sub division numbers 2, 3 and 4 of survey number 93 either during promulgation of the survey records, or while the Inspector of Cadastral survey/survey and settlement officer/inquiry officer land records, Panaji-Goa passed Order dated 15/1/1982. The fact that, the Comunidade has no right whatsoever to the properties under survey numbers 93/2, 93/3 and 93/4 has been thus proved and fortified.

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7) On perusal of the record of Civil Suit No. 222/94/A filed by Communitade of Bambohim against said Margulhao, Meghwar Tanna and others it is revealed that the Communitade of Bambohim in the said suit claimed title to the properties bearing survey numbers 93/2 and 93/3 only. It is pertinent to be noted that in the said suit or at any time in the past, the Communitade had never claimed the properties bearing survey numbers 93/2, 93/3 and 93/4 of Bambohim Village. Pending the hearing and final disposal of the said suit No. 222/94/A, an application for temporary injunction was filed by the Communitade. Said application was dismissed by the Civil Court by order dated 17th June 1996. The records further reveal that, the Communitade of Bambohim settled the said suit by filing compromise terms on 15/11/1998. The said suit was thus decreed by Judgment, Order and Decree dated 21st November 1998.

8) As per the said consent terms, said Margulhao agreed to allot to the Communitade 5 plots admeasuring 252 sq. mts from her then other property bearing survey number 93/3 and 40 plots in favour of the association of Gabukars of Communitade in survey number 93/2. The Communitade has admitted before the Civil Court that the Communitade has no right, title or interest to the properties bearing survey numbers 93/3.

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98/1, 93/2, 93/3 and 93/4 of Bambolim Village and declared that the Communitade has no dispute or claim as against the owners of the said properties bearing survey numbers 89/3, 98/1, 93/2, 93/3 and 93/4 of Bambolim Village. The fact that said properties under survey numbers 93/2, 93/3 and 93/4 of Bambolim Village does not belong to Communitade is once again established and settled in the said proceedings bearing Special Civil suit No.222/94/A from the own admission of the Communitade.

9) From the aforesaid facts, it is clear that the said properties bearing survey numbers 93/2, 93/3 and 93/4 of Bambolim Village originally belonged to Morgulhao and the claim of the Communitade and its components off late now made in the pending litigations viz C. S. No.66/2009 and Spl. C. S. No.52/2013/A are baseless.

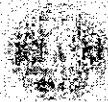
10) The records of the Civil suit filed by Pascoal Trindade against the persons whose names were wrongly recorded in the tenants column reveals that the properties under survey numbers 93/2, 93/3 and 93/4 comprises of cashew garden and cashew plantation and that at times the fruits of the cashew trees in the said properties were sold by the owners of the said properties to family of Pundalik Cuncolkar, Bieuro Gomes, Madhu Cuncolkar, Rama Gomes etc. as per the highest price offered by them towards purchase of fruits. Names of said 4 persons thus came to be mistakenly and erroneously recorded in the survey records.

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11) Sri P. S. Prasad therefore filed a Civil suit before the Court of Civil Judge, Junior Division, Panaji having R.C. No. 07/02. The said suit was decreed by Judgment, Order and Decree dated 25th January 2007 holding P. S. Prasad to be the absolute owner of the said properties and further holding that names of said Pradipal Cuncolkar, B. S. S. Gomes, Madhu Cuncolkar, R. S. S. Gomes persons are wrongly recorded in the survey records in the column "name of the tenant".

12) The record also shows that the family of said Pradipal Cuncolkar viz. Madhu Cuncolkar, Parshuram Cuncolkar, B. S. S. Gomes and Sebastiao Gomes so motto ever approached the Court of Dy. Collector and filed an application under Section 103 of Land Revenue Code, bearing case number LRC/COR/8/2007, admitting the erroneous entries of their names in the tenants column of the survey records of the said properties under survey numbers 93/2, 93/3 and 93/4 of Village Bamboolim. The Court of Dy. Collector was accordingly pleased to pass Judgment and Order dated 3rd April 2007 allowing deletion of names of said Madhu Cuncolkar viz. Madhu Cuncolkar, Parshuram Cuncolkar, B. S. S. Gomes and Sebastiao Gomes which were erroneously appearing in the tenants column and accordingly directed the Mamlatdar of Tirwani to delete said names from the survey records of the said survey numbers. The said Judgment and

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Order passed by the Court of Dy. Collector is in force and is neither challenged nor set aside. The Mamlatdar of Tiswadi after compliance of provisions of law under the rules of Land Revenue Code deleted the erroneous entries from the tenants column of the survey records of said survey numbers from the computerized records maintained by his office.

13) The aforesaid documents thus establish, that, the properties under survey numbers 93/2, 93/3 and 93/4 are free from any tenancy rights in favour of any person or persons under the Goa Daman & Diu Agricultural Tenancy Act and that the said properties are not the properties of Comunidade of Bamouim and that Pascoal Trindade and his wife have acquired absolute right to the same.

14) It is also seen that Marvin Gonsalves and another filed writ petition before the High Court of Bombay at Goa being Writ petition No.102/2009 seeking inquiry in respect of subject properties, inter alia alleging that the said properties belongs to Comunidade and are tenanted properties.

15) The Hon'ble High Court of Bombay at Goa, based on the statement made by the Ld. Advocate General, passed an order directing the Deputy Collector and S.D.O. Panaji to hold a detail inquiry into the said allegations

CONCLUSIONS

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(10) It is evident from the common and special writs filed and moved by the Hon'ble High Court of Bombay at Goa, disposing the writ petition Nos.500, 20 March 1972 of 1974 and 131 to 134 of 1974 wherein several private individuals who were constitutional members of the Congress made as petitioners had prayed for a writ of Mandamus against the Collector of North Goa to revoke the conversion order bearing No. CIV/11341/60 as also a Writ of Certiorari calling for records and proceedings in Special Civil Suit No.128/1982/A, Special Civil Suit No.15/84 and Special Civil Suit No.212/1994/B and after considering the legality and propriety of the Judgement & Decrees passed therein to quash and set them aside. As also writ of Mandamus directing the Collector to decide the question in case No.ILL/CNV/19.20/09/851, whether there was any amount payable on

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which the Goa Land Use Regulations 1991 came into force and whether any illegal construction has taken place in respect of the said lands. A writ of Prohibition was also sought against the Deputy Collector, Tiswadi not to consider the Judgments & Decrees made in Special Civil suit No.128/1982/A, Special Civil suit No.15/2001/A and Special Civil suit No.232/1994/B contending that the same are illegal and void ab-initio and further more not to consider conversion Serial No.CNV/TIS/41/90 vide its proceedings with the inquiry in terms of directions given by the Hon'ble High Court in writ petition No.102/2009. The petitioners further sought a writ of Mandamus directing the Administrator to exercise his power under Article 371 of Code of Communitaries and to remove and demolish all the alleged illegal constructions allegedly constructed in Communitade land as alleged bearing survey No.89/3, 90/1, 93/2, 93/3 and 93/4 of Village Dambolim.

17) The above set of Writ Petitions were dismissed at the threshold, without being admitted. The said order of the High Court also confirmed that the said properties originally belonged to Maximo Mergulhao and the same have been purchased by Mr. Pascoal Trindade by valid Deeds of Sale.

Hemkan: 1, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, 190, 191, 192, 193, 194, 195, 196, 197, 198, 199, 200, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231, 232, 233, 234, 235, 236, 237, 238, 239, 240, 241, 242, 243, 244, 245, 246, 247, 248, 249, 250, 251, 252, 253, 254, 255, 256, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 270, 271, 272, 273, 274, 275, 276, 277, 278, 279, 280, 281, 282, 283, 284, 285, 286, 287, 288, 289, 290, 291, 292, 293, 294, 295, 296, 297, 298, 299, 300, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 327, 328, 329, 330, 331, 332, 333, 334, 335, 336, 337, 338, 339, 340, 341, 342, 343, 344, 345, 346, 347, 348, 349, 350, 351, 352, 353, 354, 355, 356, 357, 358, 359, 360, 361, 362, 363, 364, 365, 366, 367, 368, 369, 370, 371, 372, 373, 374, 375, 376, 377, 378, 379, 380, 381, 382, 383, 384, 385, 386, 387, 388, 389, 390, 391, 392, 393, 394, 395, 396, 397, 398, 399, 400, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 431, 432, 433, 434, 435, 436, 437, 438, 439, 440, 441, 442, 443, 444, 445, 446, 447, 448, 449, 450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, 462, 463, 464, 465, 466, 467, 468, 469, 470, 471, 472, 473, 474, 475, 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486, 487, 488, 489, 490, 491, 492, 493, 494, 495, 496, 497, 498, 499, 500, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 531, 532, 533, 534, 535, 536, 537, 538, 539, 540, 541, 542, 543, 544, 545, 546, 547, 548, 549, 550, 551, 552, 553, 554, 555, 556, 557, 558, 559, 560, 561, 562, 563, 564, 565, 566, 567, 568, 569, 570, 571, 572, 573, 574, 575, 576, 577, 578, 579, 580, 581, 582, 583, 584, 585, 586, 587, 588, 589, 590, 591, 592, 593, 594, 595, 596, 597, 598, 599, 600, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 628, 629, 630, 631, 632, 633, 634, 635, 636, 637, 638, 639, 640, 641, 642, 643, 644, 645, 646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 84

References

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16. The two inventors have also been named by the Patent Office as
inventors of the "method of determining the relative humidity of the
air by means of a psychrometer" and the "method of determining the
relative humidity of the air by means of a psychrometer" and the "method of
determining the relative humidity of the air by means of a psychrometer".

10. It is seen that the above mentioned individual, CHARLES
Order residing in District of Columbia, was arrested on 11/21/41
from the Town & County Jail and is presently being held at the Federal
Penitentiary at Leavenworth, Kansas.

20) The Director says that on basis of the Environmental Clearance issued by the Goa State Environmental Impact Assessment Authority vide Reference No.1-181-2010/STE DTP/104 dated 11/12/2013, an environmental clearance has been given to the proposed construction activity on the property in question.

21) It is also seen that in terms of the construction, License issued by the Village Panchayat of Curu, Bantolita & Talasani, Jaisalmer.



No.VII/ CRT/ 2012-13/CONST/2041 dated 30/3/2013, the proposed construction activity on the property in question can be commenced.

12) It is apparent that after the dismissal of the Special Leave Petition No.17158 of 2012 by the Hon'ble Supreme Court of India vide Order dated 29/8/2012, the Communiade of Bambolim instituted a Civil suit viz. Special Civil suit No.5272/11/VA in the Court of the Civil Judge Senior Division at Panaji. That in terms of the said suit it is the claim of the Communiade that it is owner of the properties bearing survey Nos.93/2, 93/3 and 93/4 of Village Bambolim. The said Civil suit is pending adjudication.

13) The Communiade of Bambolim also initiated proceedings for setting aside the terms of compromise dated 19/11/1998 and the Consent Decree passed thereon dated 21/11/1998 viz. Civil Miscellaneous Application No.10/93 in the Court of the Civil Judge Senior Division at Panaji. That ex Pascoal Trindade who is the present owner in possession and enjoyment of the properties bearing survey No.93/2, 93/3 and 93/4 has not been joined as a party to the said proceeding. Shri Pascoal Trindade has not applied for intervention in this proceedings. The said intervention was allowed and I am informed that the said proceedings is now pending adjudication. This needs to be continued.

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24) The Communiade of Bambolim has also preferred appeal against the Judgement and Order dated 1/3/2011 passed by Dy. Collector & SDO Panaji in Case No. III/CNV/TIS/19/2009, together with an application seeking condonation of delay of 713 days and I am told that the same is pending adjudication before the Administrative Tribunal, North Goa Panaji. This also needs to be confirmed.

25) It is also seen that the another Civil Suit No.66/2010 is filed by one Benevalo de Souza before the Additional District Judge, North Goa at Panaji seeking a relief of declaration, permanent injunction and consequential reliefs in respect of several properties including the subject property surveyed under survey No.93/4. An application for temporary injunction filed by said Benevalo D'Souza in the pendency of the said suit No.66/2010 is claimed being withdrawn. The suit is pending hearing. This fact needs to be confirmed.

26) Considering the aforesaid documents and on examination of the papers referred above, I am of the view that Communiade of Bambolim having admitted before the Court in terms of compromise dated 19/11/1998.

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and the Government's Consent Decree passed by the Court dated 21/11/1998, the Government of India does not have and cannot claim any right, title or interest in the land or portions thereof the allotment of plots agreed upon by the original owners. In my opinion, the execution of said consent decree by the Government of India after 13 years is also a breach of law.

The Government of India has failed to challenge by a misc. application in the Court of law. There is no independent Civil Court in the Government of India and the Government Decree dated 21/11/1998 is a breach of law. The Government of India has admitted that the Government of India has no right in the Government property. The other Government property has been thrust upon the Government finally by the Government of India.

The Government of India has failed to challenge the RA Appeal before the Court of law. In the Government Decree there are no provisions for the Government of India. The Government of India referred above will be the Government of India. However, in my opinion, the pending proceedings in the Court of law are not sufficient for the Government and back mailing over the Government of India.

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Ponemol, Curchorem - Goa, 403 706

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29) To sum up therefore, I am of the view that subject to the outcome of pending litigations, Pascoal Trindade and his wife hold a valid clear and marketable title to the properties surveyed under survey numbers 93/2, 93/3 and 93/4 and particularly to the subject property bearing survey number 93/4 of Bambolim Village.

Curchorem-Goa

Date: 12/3/2021

(H. T. Bhangui)

Advocate